

24STCV41026 24STCV41026

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-08-07

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Case Number: 24STCV41026 Hearing Date: August 7, 2026 Dept: F46

BACKGROUND

Defendant MFG Associates, Inc. applies ex parte to advance the hearing date on its counsel's Motion to Be Relieved as Counsel, which was filed on August 5, 2026 and noticed for December 17, 2026. The ex parte application was filed on August 5, 2026 and set for hearing in Department F46. On August 5, 2026, the Court advanced the ex parte hearing to that date, continued it to August 7, 2026, and ordered counsel to file a declaration under seal for in camera review addressing the timing of the request, diligence, the asserted exigency, and the potential impact on the scheduled trial. Jury trial in this action is presently set to commence on August 24, 2026 for trial-related proceedings, with an estimated multi-week trial, and the Court has reserved that period and coordinated its calendar accordingly.

Counsel asserts that circumstances have arisen which, according to counsel, constitute good cause for withdrawal under the applicable Rules of Professional Conduct and California Rules of Court. The Court has reviewed counsel's supplemental declaration filed under seal solely for purposes of evaluating the asserted basis for withdrawal and the request for expedited relief, without disclosing the substance of the sealed submission. Plaintiffs oppose advancement and withdrawal, arguing that withdrawal at this stage would be prejudicial, would likely require a trial continuance because the corporate defendant cannot appear in propria persona, and could affect issues relating to the five-year statute.

LEGAL STANDARD

Ex parte relief requires an affirmative factual showing of irreparable harm, immediate danger, or another statutory basis, together with an explanation of the timing of the request, diligence, and why the relief cannot be obtained through regular noticed motion practice. (Cal. Rules of Court, rule 3.1202(c).)

DISCUSSION

A. Ex Parte Application to Advance Hearing

The motion to be relieved as counsel was noticed for hearing on December 17, 2026, well after the scheduled commencement of trial proceedings on August 24, 2026. Given the proximity of trial, the need to determine counsel's status before trial begins, and the Court's August 5, 2026 order requiring an under-seal declaration addressing the timing of the request, diligence, and asserted exigency, the Court finds good cause to advance the hearing. Advancement permits timely resolution of the withdrawal motion before trial and avoids unnecessary uncertainty concerning representation of the corporate defendant.

Accordingly, the ex parte application to advance the hearing is GRANTED, and the motion is heard on August 7, 2026.

The Clerk is directed to give notice.